

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ALEXANDER WELLS,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ANTHONY
DAVILA, Shield # 14220 (Tax Id. No. 956571),
Individually and in his Official Capacity, and POLICE
OFFICERS "JOHN DOE" #1-10, Individually and in
their Official Capacity (the name John Doe being
fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
July 31, 2020

COHEN & FITCH LLP
Attorneys for Plaintiff
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

TO:

JAMES E. JOHNSON
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. ANTHONY DAVILA, Shield # 14220 (Tax Id. No. 956571)
79th Precinct Detective Squad
263 Tompkins Ave.
Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALEXANDER WELLS,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. ANTHONY DAVILA, Shield # 14220 (Tax Id. No. 956571), Individually and in his Official Capacity, and POLICE OFFICERS “JOHN DOE” #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiff ALEXANDER WELLS by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully allege as follows:

FACTS

1. Plaintiff ALEXANDER WELLS is an African-American male and has been at all relevant times a resident of Kings County in the State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, ANTHONY DAVILA, Shield # 14220 (Tax Id. No. 956571) and “JOHN DOE” #1-10, were

duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about January 5, 2020, in the County of Kings, City, and State of New York, plaintiff ALEXANDER WELLS, was lawfully present in the vicinity of Herkimer Pl. and Perry Pl., Brooklyn, NY.

9. At approximately 1:58 a.m., on the above-mentioned date and location, plaintiff was accosted by multiple NYPD officers – defendants DAVILA and/or “JOHN DOE” #1-10 – who approached him, immediately grabbed him, aggressively pushed him up against a parked vehicle.

10. Subsequently, these officers – defendants DAVILA and/or “JOHN DOE” #1-10 – began to search plaintiff’s person and effects. No contraband was found on plaintiff’s person or effects as a result of this search.

11. At no time on January 5, 2020, did defendants DAVILA and/or "JOHN DOE" #1-10 possess probable cause and/or reasonable suspicion to search plaintiff's person or effects nor did they obtain voluntary consent from him to do so.

12. At no time on January 5, 2020, did defendants DAVILA and/or "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's persons or effects.

13. Thereafter, plaintiff was questioned and then placed under arrest by defendants DAVILA, and/or "JOHN DOE" #1-10, who handcuffed his arms tightly behind his back.

14. At no time on January 5, 2020, did defendants DAVILA and/or "JOHN DOE" #1-10 possess probable cause to arrest plaintiff.

15. At no time on January 5, 2020, did defendants DAVILA and/or "JOHN DOE" #1-10 possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

16. At no time on January 5, 2020, did plaintiff possess any weapons and/or any other contraband, nor did he have custody and control over any weapons and/or any other contraband, nor did he assemble unlawfully, nor did he commit any crimes or offenses, nor did he behave unlawfully in any way, nor was any evidence or contraband found on his person or in his effects.

17. Thereafter, plaintiff was placed in a police vehicle and transported to a nearby precinct. Upon arrival at the precinct, plaintiff was searched, fingerprinted, photographed, confined against his will in a holding cell, and charged with crimes by defendants DAVILA and/or "JOHN DOE" #1-10. Specifically, plaintiff was charged with Criminal Possession of a Weapon and Unlawful Assembly.

18. After being detained at the aforementioned precinct, plaintiff was transported to Central Booking where he was searched again, subjected to a retina scan, and further detained.

19. In connection with plaintiffs' arrest, defendants DAVILA and/or "JOHN DOE" #1-10 filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney's Office. Thereafter, defendants DAVILA and/or "JOHN DOE" #1-10 repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants DAVILA and/or "JOHN DOE" #1-10 falsely stated, *inter alia*, that plaintiff was unlawfully assembling and further falsely stated that plaintiff was found to be in possession of two (2) firearms.

20. As a result of the foregoing, plaintiff spent approximately thirty-nine (39) hours in custody before all charges against him were dismissed in their entirety when the Kings County District Attorney's Office declined to prosecute his arrest on or about January 6, 2020.

21. As a result of the foregoing, plaintiff sustained, *inter alia*, loss of liberty, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

22. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

23. All of the aforementioned acts of defendants, their agents, servants, and employees, were carried out under the color of state law.

24. All of the aforementioned acts deprived plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

25. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

26. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

27. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

29. As a result of the aforesaid conduct by defendants DAVILA and/or “JOHN DOE” #1-10, plaintiff was subjected to an illegal, improper, and false arrest by the defendants DAVILA and/or “JOHN DOE” #1-10, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

30. As a result of the foregoing, plaintiff’s liberties were restricted for an extended period of time, he was put in fear for his safety, and he was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

32. Defendants DAVILA and/or “JOHN DOE” #1-10 created false evidence against the plaintiff and misled the prosecutors by creating false evidence against the plaintiff.

33. Defendants DAVILA and/or “JOHN DOE” #1-10 forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s Office – namely, the defendants falsely informed prosecutors that *inter alia*, plaintiff was unlawfully assembling in that he was observed playing music very loudly while dancing in public and further falsely stated that plaintiff was found to be in possession of two (2) firearms.

34. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants DAVILA and/or “JOHN DOE” #1-10 violated plaintiff’s constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

35. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
FIRST AMENDMENT VIOLATION UNDER 42 U.S.C. § 1983

36. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

37. By their conduct, as described herein, and acting under color of state law to deprive the plaintiff of his right to freedom of speech under the First and Fourteenth Amendments, defendants DAVILA and/or "JOHN DOE" #1-10 are liable for violation of 42 U.S.C. § 1983, which prohibits the deprivation under color of state law of rights secured under the United States Constitution.

38. Defendants DAVILA and/or "JOHN DOE" #1-10 violated plaintiff's First Amendment rights to assemble by unlawfully subjecting him to false arrest to deter the exercise of his First Amendment rights.

39. As a consequence of defendants' DAVILA and/or "JOHN DOE" #1-10 actions, plaintiff suffered violations of his First and Fourteenth Amendment rights to free speech.

40. As a direct and proximate result of the defendants' DAVILA and/or "JOHN DOE" #1-10 unlawful actions, plaintiff has suffered damages including, loss of liberty, mental and emotional injury, and pain, mental anguish, suffering, humiliation, embarrassment, and loss of reputation.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

42. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

43. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
- E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

44. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of the plaintiffs.

45. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

46. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

47. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

48. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

49. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

PENDANT STATE CLAIMS

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

51. On or about March 26, 2020, and within (90) days after the claim herein accrued, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

52. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

53. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h and said hearing was held on June 4, 2020.

54. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

55. Plaintiff has and/or will comply with all conditions precedent to maintaining the instant action.

56. This action falls within one or more of the exceptions outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

58. Defendants DAVILA and/or “JOHN DOE” #1-10’s aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

59. As a result of defendants’ DAVILA and/or “JOHN DOE” #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

61. Defendant police officers DAVILA and/or “JOHN DOE” #1-10 touched plaintiff in a harmful and offensive manner.

62. Defendant police officers DAVILA and/or “JOHN DOE” #1-10 did so without privilege or consent from plaintiff.

63. As a result of defendants’ DAVILA and/or “JOHN DOE” #1-10 conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/FALSE IMPRISONMENT**

64. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

65. Defendant police officers DAVILA and/or "JOHN DOE" #1-10 arrested plaintiff in the absence of probable cause and without a warrant. As a result of the foregoing conduct by defendants DAVILA and/or "JOHN DOE" #1-10, plaintiff was falsely arrested/imprisoned.

66. Plaintiff was conscious of said confinement and did not consent to same.

67. The confinement of plaintiff was without probable cause and was not otherwise privileged.

68. As a result of the aforesaid conduct by defendants DAVILA and/or "JOHN DOE" #1-10, plaintiff was subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated, his liberty was restricted for an extended period of time, he was put in fear for his safety, and humiliated and subjected to handcuffing and other physical restraints. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

70. The aforementioned conduct by defendants DAVILA and/or "JOHN DOE" #1-10 was extreme and outrageous and exceeded all reasonable bounds of decency.

71. The aforementioned conduct was committed by defendants DAVILA and/or “JOHN DOE” #1-10 while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

72. The aforementioned conduct was committed by defendants DAVILA and/or “JOHN DOE” #1-10 while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

73. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

74. As a result of the aforementioned conduct, plaintiff suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright, and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

76. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned, and supervised all members of its Police Department, including the defendants individually named above.

77. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

78. Due to the negligence of the defendants as set forth above, plaintiff suffered physical and mental injury, pain, and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs, and disbursements of this action.

Dated: New York, New York
July 31, 2020

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
110 E. 59th St., Suite 3200
New York, N.Y. 10022
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiff ALEXANDER WELLS in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
July 31, 2020

_____/S
ILYSSA S. FUCHS